

4. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: MENDIETA, ALLAN S.
TENTATIVE RULING:

See Line 3 above.

5. 9:00 AM CASE NUMBER: C25-00012
CASE NAME: SURGRIFF PROPERTIES LLC VS. CLARITA GRIFFIN
***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES,**
SPECIAL INTERROGATORIES, REQUESTS FOR PRODUCTION, AND REQUESTS FOR ADMISSION, SET
ONE
FILED BY:
TENTATIVE RULING:

On July 21, 2025, plaintiff Surgriff Properties LLC ("Plaintiff") filed a motion to compel further responses to certain discovery requests propounded by Plaintiff to defendant Clarita Griffin ("Defendant") (collectively, the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing on November 3, 2025.

Background

The Motion to Compel Further Responses relates to four separate discovery requests. Plaintiff served Defendant with (1) a Form Interrogatories, Set One, (2) Special Interrogatories, Set One, (3) Requests for Production, Set One, and (4) Requests for Admission, Set One. See Declaration of Jason Horst filed July 21, 2025 ("Horst Decl."), ¶13 and **Exhibits 1-4** thereto. Collectively, these requests are referred to herein as the "Discovery Requests."

No responses were received before the deadline. Horst Decl., ¶15. Despite meet and confer efforts, no responses were received before Plaintiff filed an earlier motion to compel on May 15, 2025.

Responses were finally served on June 3, 2025. Horst Decl., ¶15.

The earlier motion to compel was denied as moot given that responses had been served in the interim. See Order entered September 2, 2025.

However, this motion remained pending based on the contention that Defendant's responses were inadequate.

At the hearing on the Motion to Compel Further Responses on November 4, 2025,* the Court ordered the parties to meet and confer and file a Joint Statement no longer than 10 pages by December 1, 2025 (the "Joint Statement") and continued the hearing to December 15, 2026.

At the Case Management Conference (CMC) on November 19, 2025, the Motion to Compel Further Responses was continued from December 15, 2025 to March 9, 2026. The Court was informed that the parties had made progress towards settlement and the parties agreed to continue the discovery motion. See Minute Order dated November 19, 2026.

A Reply was filed on March 2, 2026. Among other things, plaintiff observes that no settlement has yet